Kentucky and Virginia Resolutions

Drafted secretly by Jefferson and Madison · 1798

Source: Avalon Project (Yale Law School), avalon.law.yale.edu/18th_century/kenres.asp and virres.asp

After Congress passed the Alien and Sedition Acts in 1798 — laws that criminalized criticism of the federal government — Vice President Thomas Jefferson (secretly drafting the Kentucky Resolutions) and James Madison (the Virginia Resolutions) argued that states had the right to declare federal laws unconstitutional. These resolutions launched the doctrine of nullification, which would resurface during the Nullification Crisis of 1832 and later in arguments leading to secession.

> *Connect: Compare the Federalist / Democratic-Republican split of the 1790s to the Federalist / Anti-Federalist debate over ratification in 1788.*

Key Passages

Kentucky Resolutions (Jefferson)

> Resolved, That the several States composing the United States of America, are not united on the principle of unlimited submission to their general government … and that whensoever the general government assumes undelegated powers, its acts are unauthoritative, void, and of no force.

Virginia Resolutions (Madison)

> In case of a deliberate, palpable, and dangerous exercise of other powers, not granted by the said compact, the States, who are parties thereto, have the right, and are in duty bound, to interpose, for arresting the progress of the evil.

HIPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	The Quasi-War with France (1798): the Federalist Congress passed the Alien and Sedition Acts, which made criticism of the government a crime.
Intended Audience *Who was the source written for?*	The other state legislatures, which the resolutions asked to join in declaring the Acts unconstitutional, and voters ahead of the election of 1800.
Point of View *Whose perspective? Whose is missing?*	Democratic-Republican leaders Thomas Jefferson (secretly, while vice president) and James Madison, who opposed Federalist power and favored a strict reading of the Constitution.
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. SAQ — explain how/why: Explain HOW the Alien and Sedition Acts prompted the Resolutions, and WHY Jefferson and Madison kept their authorship secret.

2. Identify ONE later moment in U.S. history when the nullification doctrine reappeared.

3. How do the Resolutions reflect the philosophical split between Federalists and Democratic-Republicans?